

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE
Office of City Clerk**

November 27, 2017

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR – Marian J. Orr; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Richard Johnson, Pete Laybourn, Mike Luna, Scott Roybal, Dr. Mark Rinne, Dicky Shanor and Jeff White. Also present: Carol Intlekofer, City Clerk, and Sylvia Hackl, City Attorney. The pledge of allegiance was recited.

Mayor Orr announced that agenda item #18 (Resolution) was being removed at the request of the sponsors.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Upon request by Mr. Cook, and pursuant to support received by Mr. Roybal and Mr. Johnson, Agenda Item #20(a) was removed from the Consent Agenda. Mr. Luna moved to approve remaining Consent Agenda items, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

[CA] Minutes from Regular Meeting of the Governing Body on November 13, 2017. Motion (per Consent Agenda) carried.

Mr. Luna moved to approve payment of vouchers as presented, seconded by Mr. Cook. Inquiry was made regarding vouchers payable to: Gregory Hoggatt (employee moving expenses); Affordable Lawn & Tree Care (nuisance property abatements), Brown Shoe Fit (employee safety boots); Burke Moving & Storage (Metropolitan Planning Organization’s office moving expenses); Cheyenne Regional Medical Center (sexual assault nurse exams); Cheyenne Fence Company (accident involving fence damage); Clean Harbors Environmental Services (household hazardous waste disposal fees); Wyoming Business Council (payment associated with grant for Swan Ranch), and Service Pro of Cheyenne (water damage clean-up). Providing information available on the vouchers of interest were: Mayor Orr; Ron Downey, City Treasurer; Vicki Nemecek, Director of Public Works; Chief Brian Kozak, Police Department, and Sylvia Hackl, City Attorney. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 3rd READING – Annexing to the City of Cheyenne, Wyoming, a portion of Section 9, all of the W½ Section 14, all of Section 15, a portion of Section 16, and all of Section 21; Township 13 North, Range 66 West of the 6th P.M., Laramie County, Wyoming (located to the southeast of the intersection of E. College Drive and Avenue C) (postponed from 11/13/2017). Reporting for Public Services Committee, Mr. Roybal moved to approve on third and final reading, seconded by Dr. Rinne. Mr. Roybal moved to postpone to December 11, 2017 at the request of

the developer, seconded by Mr. Cook. Motion to postpone carried. Voting “yes” – all members of the governing body.

ORDINANCE – 3rd READING – Amending various sections of Chapter 8.40, Food and Food Service Establishments, Title 8, Health and Safety, of the code of the City of Cheyenne, Wyoming. Mr. Roybal moved to approve on third and reading, seconded by Mr. Johnson. Motion carried. Voting “yes” – all members of the governing body. (#4211)

ORDINANCE – 2nd READING – Amending Section 1.12.010, Findings of fact, and amending Section 1.12.020, Filing of plats and maps, of Chapter 1.12, Datum Plane, of Title 1, General Provisions, of the code of the city of Cheyenne, Wyoming. Mr. Roybal moved to approve on second reading, seconded by Mr. Cook. Motion carried. Voting “yes” – all members of the governing body.

ORDINANCE – 1st READING – Amending various sections of Title 10, Vehicles and Traffic, of the code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Roybal)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Swan Ranch Rail Park, Twelfth Filing, a plat of land being situated in portions of the NE¼ NE¼ of Section 28, and the NW¼, NW¼ of Section 27, T13N, R67W of the 6th Principal Meridian, Laramie County, Wyoming (located to the north of the intersection of Berwick Drive and Tundra Drive). Mr. Roybal moved to adopt with staff conditions #1 & 2, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. (#5890)

RESOLUTION – Authorizing the Mayor and the City Clerk to sign a County Final Plat for Swan Ranch Rail Park, Thirteenth Filing, a plat of land being situated in a portion of Section 22, Township 13 North, Range 67 West of the Sixth Principal Meridian, Laramie County, Wyoming (located to the west of and adjacent to Berwick Drive, south of W. Wallick Road). Mr. Roybal moved to adopt with staff condition #1, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body. (#5891)

RESOLUTION – Adopting the Converse Dell Range Intersection Traffic Safety Plan and the Converse Avenue 35% Design Plan. Mr. Roybal moved to adopt, seconded by Mr. Case. Appreciation was expressed to Metropolitan Planning Office (MPO) staff for providing driving scenario information. Comment was made on following through with various project plans acted upon by the governing body; acknowledging receipt vs. adopting the plans, and accountability of the governing body relative to approving plans. Mr. Shanor moved to amend by striking the word “adopting” and inserting “acknowledging receipt” of the plans and making conforming amendments throughout the rest of the text, seconded by Mr. Johnson. Tom Mason, MPO Director, explained the different levels of action (i.e. approving, adopting and acknowledging receipt) that can be taken on plans and encouraged Council to adopt the plans to provide staff with guidance to move forward with finding any funding opportunities for the project. Discussion followed on previous plans, such as the Downtown Parking Study, in which the governing body acknowledged receipt of the study vs. adoption; inactivity or non-implementation of plans, and governing body’s potential accountability for plan contents. Upon inquiry, Carol Intlekofer, City

Clerk, stated it was her recollection that the Downtown Parking Study resolution was acknowledged by receipt, and noted some recommendations of the study are in process. Discussion continued on the definition and implication of “acknowledging receipt” vs. “adopting”. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended carried. Voting “yes” – all members of the governing body. (#5892)

[CA] RESOLUTION – Supporting the City of Cheyenne, Wyoming’s application for a Land and Water Conservation Fund Grant for dugout roof replacement and concrete and masonry block repair at the Cheyenne Junior League Complex. Motion (per Consent Agenda) carried. (#5893)

RESOLUTION – Authorizing a one time payment to full-time and permanent part-time employees of the City of Cheyenne (excluding the Firefighters Union Local No. 279 and employees of the Cheyenne Board of Public Utilities) in recognition of their outstanding efforts. Stephanie Lowe, President, Cheyenne Public Employees Association (CPEA), thanked the governing body for supporting the resolution. Reporting for Finance Committee, Mr. Luna moved to adopt, seconded by Mr. Shanor. Mr. Luna moved to amend by increasing the one-time payment from 10% to 14% of the overage funds from the 2017 Fiscal Year budget, seconded by Mr. Roybal. Discussion included: Addressing City employee pay inequities; prior employee bonuses; employee incentives and rewards related to controlling budget expenditures; future policy regarding employee bonuses and retaining and focusing on the initial 10% allocation; lack of prior communication by CPEA regarding its recommendation of 14% that was proposed and recommended for approval at the Finance Committee; employee criteria in receiving the bonus; employee increased out-of-pocket expenses due to new health insurance provider, and City vs. employee FICA tax burden expense. During discussion and upon inquiry, Ron Downey, City Treasurer, explained the employee inclusion requirements to be eligible for the bonus and reviewed four options involving the percentage bonus amount (10% vs. 14%) relative to gross/net amounts, including tax expense amounts; Mayor Orr verified that Fire Union employees would not be included in the bonus payment and advised the proposed 14% increase would assist with holding employees harmless relative to the required tax deduction, and Sylvia Hackl, City Attorney, and Fire Chief Greg Hoggatt provided information on terms of the current Fire Union collective labor agreement. Motion to amend failed. Voting “yes” – Mr. Johnson, Mr. Laybourn and Mayor Orr. Voting “no” – Mr. Case, Mr. Cook, Mr. Luna, Mr. Roybal, Dr. Rinne, Mr. Shanor and Mr. White. Main motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#5894)

[CA] RESOLUTION – Authorizing the City Treasurer to discharge uncollectible debts in the amount of \$58,535.43 pursuant to Wyo. Stat. §16-4-502 – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Authorizing a one-time payment to each member of the bargaining unit of Cheyenne Firefighters Local Union Number 279 in settlement of the grievance filed by the Union against the City concerning health insurance benefits – referred to Finance Committee. (Sponsor – Mr. Shanor)

[CA] RESOLUTION – Declaring opposition to the elimination or reduction of the Federal Historic Preservation Tax Incentives Program (Sponsors - Mr. Roybal and Mr. White). Resolution

was withdrawn from the agenda at the request of the sponsors earlier in the meeting. [Refer to other business for additional information]

Professional Services Agreement between the City of Cheyenne and Collins Engineers, Inc., for Christensen Road constructability review services (postponed from 11/13/2017). Ben Rowland, City Attorney's office, spoke on the purpose of the agreement generally and reviewed proposed changes and cost saving alternatives to certain Exhibit pages related to the agreement. He explained options for approval of additional services included in proposed Exhibit changes, and the proposed revision to the compensation schedule. Tom Mason, Director, Metropolitan Planning Office (MPO), questioned a modification change contained in the alternatives relative to the Pershing and Christensen intersection being a T-design vs. 4 legged intersection. John Volk reviewed committee representation, which included himself, and background of the committee's and City staff review of plans submitted in response to the two Requests for Proposals issued for the project. He discussed plans submitted by Benchmark that were unsigned and unstamped; need for a construction management firm's involvement and support for the contract with Collins Engineers with the alternatives; length of time for design plans to be completed; design costs, and other Benchmark projects involving City projects. Jennifer Merrill, speaking on behalf of four property owners located at the end of the overpass near the bridge, discussed Benchmark's plans, which they communicated to the homeowners, to utilize Tate Road as their point of access. She explained the types of businesses herself and the other property owners have and the need for sufficient and safe road width access involving various equipment types; advised of an alternate option they proposed involving land donation to provide for access further down the road, with road maintenance by the homeowners as the county will not be maintaining; cost savings that could be realized by their proposal, and timeliness of awarding bids to begin the project relative to cost. Mr. Rowland clarified that wording contained in Exhibit A-8, under basic services, encompassed the design changes alluded to by Ms. Merrill. Mr. Luna reported there was no recommendation on the item from Finance Committee. Mr. Shanor moved to approve, seconded by Mr. Roybal. Mr. Shanor moved to amend, seconded by Mr. Case, by deleting the wording contained in item #6 on page Exhibit A-8 and inserting the wording as a new item #7 on page Exhibit A-9; amend wording on page Exhibit A-9 (last paragraph of subsection A-5, A.5.1, 5.1.1) to read "The Additional Services shall be performed only if authorized in writing by the City prior to their performance. Consultant shall start activity only upon written approval of the City. In order to provide adequate separation of responsibilities such that no one person controls all phases of a transaction involving expenditure of additional funds, additional signatures of the Mayor, the City Council President or his or her designee, and the City Engineering Department's project manager will be required for approval of each Additional Service requested by the City." and amend Exhibit B and C per red-lined conforming amendments (as previously explained by Mr. Rowland and included in the proposed substitute documentation) with regard to changes to the Compensation Schedule and Project Schedule. Explanation was provided on the intent of the changes involving adjustment to the UPRR permit process item (new #7 on page Exhibit A-9), guaranteed vs. not guaranteed contract value in the Compensation Schedule, and extension of time frame in the Project Schedule. Upon inquiry, Jim Voeller, City Engineer, and Mr. Rowland confirmed they had reviewed and had no objections to the proposed amendments. Upon inquiry, Sylvia Hackl, City Attorney, provided information on the meaning of stamped plans and an upcoming meeting with Benchmark. Mr. Case commented for the record that it was his understanding that under the project description on page Exhibit A-1, item #4, the project as it will go out to bid, and the

drawings, will include a modern roundabout at E. Pershing and Christensen, and noted to go outside that scope would require approval by the mayor, a Council member and engineering staff. Mayor Orr agreed with Mr. Case's statement. Mr. Rowland advised that steady progress has been made with Benchmark. Upon inquiry, Mark Escobedo, City Engineer's office, confirmed he is satisfied with the options provided and he didn't believe anything would need to be added to the bid and that flexibility for bid alternate options would be available based upon funding. Comments followed in support of the agreement and moving forward with the project; roundabout design; access proposed by the property owners off Tate Road, and issuing the bid soon. Motion to amend carried. Voting "yes" – all members of the governing body. Upon inquiry regarding Mr. Mason's question regarding a T-intersection vs. a roundabout, Mayor Orr advised Exhibit A-1, item #4, which references a modern roundabout, answered the question. Main motion as amended carried. Voting "yes" – all members of the governing body with the exception of Mr. Cook voting "no". (#6759)

[CA] Contract for Services between the City of Cheyenne, Office of Youth Alternatives, and the Laramie County Community Juvenile Services Joint Powers Board for the weekender community service program (funding through Joint Powers Board). Motion (per Consent Agenda) carried. (#6760)

[CA] Grant Agreement between the City of Cheyenne, Cheyenne Fire and Rescue Department, and State of Wyoming, Office of Homeland Security, for the purposes of administering Regional Emergency Response Team #7 (RERT #7). Motion (per Consent Agenda) carried. (#6761)

[CA] Professional Services Agreement for Municipal Finance Counsel Services between the City of Cheyenne and Kutak Rock, LLP – referred to Finance Committee.

Contract Modification No. 8 to Contract No. 6219 between the City of Cheyenne, Community Recreation and Events Department, and RECCO Inc., d/b/a Five-R Company, for the Cheyenne Botanic Gardens Project, to increase the Guaranteed Maximum Price. Mr. Luna moved to approve, seconded by Mr. White. Upon inquiry, Jason Sanchez, Community Recreation and Events, explained that modification costs were being covered by fundraising efforts of the Friends of the Cheyenne Botanic Gardens Foundation. Motion carried. Voting "yes" – all members of the governing body. (#6219)

[CA] Amendment No. 6 to Contract No. 4563 between the City of Cheyenne, Public Works Department, and Wyoming Cattle Co., LLC, for grazing on the Belvoir Ranch (revenue to City). Motion (per Consent Agenda) carried. (#4563)

[CA] Contract Modification No. 1 to Contract No. 6654 between the City of Cheyenne, 1% Construction Division, and Simon Contractors, to extend the completion date for the 2017 City Overlay, Part 1 Project. Motion (per Consent Agenda) carried. (#6654)

[CA] Consideration of Bid #S-3-18 for a contract between the City of Cheyenne, Community Recreation and Events Department, and Wasatch Railroad Contractors for the restoration of Big Boy 4004 Holiday Park Project (State Loan and Investment Board grant funds). Motion (per Consent Agenda) carried (amount not to exceed \$355,337.50). (#6762)

Under other business:

Frank Cole expressed concern with retaining Converse Avenue as a two lane road relative to the Converse Dell Range Intersection Traffic Safety Plan acted upon during the meeting, noting traffic volumes and encouraging further review prior to any future bidding for the project.

Jeff Dierksen, discussed traffic concerns on Pinto Lane, specifically traffic volume and speed limits in the area; referenced a petition he submitted a year ago, and requested action from the governing body in mitigating concerns. Vicki Nemecek, Director of Public Works, provided information on a proposed written response she was preparing to Mr. Dierksen, and corridor and traffic studies that had been conducted, which doesn't warrant any change in reducing the speed limit. Comments were made on responding to Mr. Dierksen's concerns and the petition; traffic planning; due diligence and studies that have been conducted; increase in speed limits in certain neighborhoods pursuant to Engineering review and state law; correlating problems with utilization of speed strips and bumps, and traffic and speed related issues in other residential neighborhoods.

Mr. Johnson stated he had been contacted by constituents as to why there are two police officers present during traffic stops. In response, Police Chief Brian Kozak explained usually there is only one officer on routine stops but that often times a second officer is requested to assist or is in the area and stops to offer assistance.

Mr. White provided information on agenda item #18(a) (Resolution declaring opposition to the elimination or reduction of the Federal Historic Preservation Tax Incentives Program) and the reason for requesting the resolution be withdrawn from the agenda, which is due to timeliness of action anticipated on the proposed tax reform bill at the national level which may affect program funding. He commented on past program benefits available to developers investing in historic downtown properties, and expressed reduction of program funding will increase obstacles related to revitalizing downtown. He encouraged those who have concerns to contact their Wyoming congressional delegation.

Mr. Case expressed appreciation to Public Works for finding an innovative and inexpensive solution to a curb cut issue at the corner Continental Drive and Meadow Drive.

There being no further business to come before the governing body, the meeting was officially adjourned at 7:52 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

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